

## Data Protection Policy

| Policy information                              |                                                                                                                                                                                                                         |
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| Organisation                                    | <ul style="list-style-type: none"><li>• That Agile Limited</li><li>• <b>Thomas Hoyland (Data Controller)</b></li><li>• <b>Thomas Hoyland (Data Processor)</b></li></ul>                                                 |
| Scope of policy                                 | <ul style="list-style-type: none"><li>• The scope of this policy is limited to the registered office/address of That Agile Limited.</li><li>• No data processors act on behalf of the persons outlined above.</li></ul> |
| Policy operational date                         | <ul style="list-style-type: none"><li>• 03-Oct-2025</li></ul>                                                                                                                                                           |
| Policy prepared by                              | <ul style="list-style-type: none"><li>• Thomas Hoyland</li></ul>                                                                                                                                                        |
| Date approved by Board/<br>Management Committee | <ul style="list-style-type: none"><li>• 03-Oct-2025</li></ul>                                                                                                                                                           |
| Policy review date                              | <ul style="list-style-type: none"><li>• 03-Oct-2027</li></ul>                                                                                                                                                           |

| Introduction             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
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| <b>Purpose of policy</b> | <p>This policy sets out how information and data captured for the purposes of operating That Agile Limited shall be handled and managed in order to;</p> <ul style="list-style-type: none"> <li>• comply with the law</li> <li>• follow good practice</li> <li>• protect clients, staff and other individuals</li> <li>• protect the organisation</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Types of data</b>     | <ul style="list-style-type: none"> <li>• Artefacts <ul style="list-style-type: none"> <li>○ Written evidence of interviews conversations and discussions</li> <li>○ Document samples from you, your clients and customers</li> <li>○ Structured data captured during engagements from clients and customers</li> <li>○ Photos taken of artefacts, workspaces at client and customer sites</li> <li>○ Photographs and video of client and customer staff captured during engagements, as part of on-site visits or remote collaboration.</li> </ul> </li> <li>• Client and Customer data <ul style="list-style-type: none"> <li>○ Business concepts e.g. department and organisation names</li> <li>○ Email addresses for departments and teams</li> <li>○ Physical building addresses and location information</li> <li>○ The name of projects and initiatives operated by the client and by the client on behalf of other stakeholders and interested parties.</li> <li>○ Documentation (real or fictional) created or captured during engagements with clients and customers as part of workshops and training exercises.</li> </ul> </li> <li>• People (working for the client and or involved in the client's business) <ul style="list-style-type: none"> <li>○ The names of staff, employees, contractors and interested parties</li> <li>○ Work email addresses</li> <li>○ Work telephone numbers</li> <li>○ Photographs and video of client and customer staff captured during engagements, as part of on-site visits or remote collaboration.</li> </ul> </li> <li>• Your clients (other companies, stakeholders, suppliers that you may be engaged in business with) <ul style="list-style-type: none"> <li>○ Client/company names</li> <li>○ Client/company email addresses</li> <li>○ Client/company telephone numbers</li> </ul> </li> </ul> |
| <b>Policy statement</b>  | <p>That Agile Limited is committed to;</p> <ul style="list-style-type: none"> <li>• complying with both the law and good practice</li> <li>• respecting individuals' rights</li> <li>• being open and honest with individuals whose data is held</li> <li>• provide training and support for staff who handle personal data, so that they can act confidently and consistently</li> <li>• notify the Information Commissioner voluntarily, even if this is not required</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

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| <b>Key risks</b> | <ul style="list-style-type: none"><li>● Data Risks – security and disclosure<ul style="list-style-type: none"><li>○ There is a risk that if data is not securely stored and processed or is accidentally disclosed this may become available to stakeholders who would seek to compete and gain an unfair advantage over clients and customers. This could cause financial and reputational damage to clients and That Agile Limited.</li><li>○ There is also a risk that disclosure of client and customer information may result in loss of intellectual property.</li></ul></li><li>● Data Risks – harming individuals<ul style="list-style-type: none"><li>○ There is a risk that if data about individuals is not accurate and up to date this may result in incorrect assessments and analysis being provided to clients which may lead to them making decisions not based on sound advice, leading to potential loss, financial and reputational damage.</li><li>○ If data on individuals is shared without their consent this will infringe their rights.</li></ul></li></ul> |
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| <b>Responsibilities</b>              |                                                                                                                                                                                                                                                                                                                                    |
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| <b>The Board / Company Directors</b> | <ul style="list-style-type: none"><li>• Thomas Hoyland (Director, That Agile Limited)</li></ul>                                                                                                                                                                                                                                    |
| <b>Data Protection Officer</b>       | <ul style="list-style-type: none"><li>• Thomas Hoyland</li></ul>                                                                                                                                                                                                                                                                   |
| <b>Specific Department Heads</b>     | <ul style="list-style-type: none"><li>• N/a</li></ul>                                                                                                                                                                                                                                                                              |
| <b>Employees &amp; Volunteers</b>    | <ul style="list-style-type: none"><li>• All staff and volunteers should be required to read, understand and accept any policies and procedures that relate to the personal data they may handle in the course of their work. (From now on, where 'employees' is used, this includes both paid employees and volunteers.)</li></ul> |
| <b>Enforcement</b>                   | <ul style="list-style-type: none"><li>• Where infringements of this policy are detected, these will be recorded in a central spreadsheet with details of the incident.</li><li>• Details of incidents of customer data will be notified to affected clients and individuals.</li></ul>                                             |

| Security                |                                                                                                                                                                                                                                                                                                                |
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| Scope                   | <ul style="list-style-type: none"><li>• This section sets out how data will be classified, stored and secured.</li></ul>                                                                                                                                                                                       |
| Setting security levels | <ul style="list-style-type: none"><li>• The business shall operate with one level of security.</li><li>• All documents or files shall be marked as CONFIDENTIAL as they will contain data from and derived from client and customer documentation and data collected as part of business activities.</li></ul> |

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| <p><b>Security measures</b></p> | <ul style="list-style-type: none"> <li>● Printed papers, documents and diagrams will be stored securely at the premises.</li> <li>○ A clear desk policy is in place.</li> <li>○ Access to the premises is controlled by a locked door.</li> <li>● Electronic files and content will be stored in the following locations: <ul style="list-style-type: none"> <li>○ Electronic files will be stored securely on a computer device, with full disk encryption.</li> <li>○ Access to the computer device will be password protected.</li> <li>○ Access to the computer device is limited to those with a legitimate purpose.</li> <li>○ Photographs gathered during client and customer engagements will be initially stored on mobile phones and moved to the computer device. <ul style="list-style-type: none"> <li>▪ Mobile phones used to capture photos are password protected/PIN code protected.</li> <li>▪ Photographs will be retained on phones for short periods of time ahead of transfer to the computer device.</li> <li>▪ Once transferred, photographs on phones will be deleted.</li> </ul> </li> </ul> </li> <li>● Documentation generated for and during client and customer engagements will be created, stored and processed within the RealtimeBoard Inc. platform – known as Miro. This is an online platform provided by a third party (<a href="https://miro.com">https://miro.com</a>). In using Miro, The Organisation (in this case That Agile Limited) takes the role of Customer and Data Controller, with Miro as the Data Processor. <ul style="list-style-type: none"> <li>○ Miro General Terms of Service <a href="https://miro.com/legal/terms-of-service/">https://miro.com/legal/terms-of-service/</a>.</li> <li>○ Miro Privacy Policy <a href="https://miro.com/legal/privacy-policy/">https://miro.com/legal/privacy-policy/</a></li> <li>○ Miro Security Policy <a href="https://miro.com/static/legal/Miro-Security-Policy.pdf">https://miro.com/static/legal/Miro-Security-Policy.pdf</a></li> <li>○ Data Processing Addendum <a href="https://miro.com/static/legal/Miro-Data-Processing-Addendum.pdf">https://miro.com/static/legal/Miro-Data-Processing-Addendum.pdf</a></li> <li>○ Administration of documentation stored using the above platform will be restricted to one or more named staff of The Organisation using password protection.</li> <li>○ Access to documentation stored within the above platform shall be restricted to named customer or client staff participating in the delivery of products and services agreed through contracts for the duration of that contract.</li> <li>○ Documentation stored in the above platform shall be segregated between clients, customers and contractual engagements.</li> <li>○ Clients and customers accessing the above tool shall be required to sign up to use the above platform, it's contained privacy and information processing policies for the delivery of training, engagements and other contractual activities. <ul style="list-style-type: none"> <li>▪ Written consent from both the client and customer will be required before the above platform can be used.</li> </ul> </li> <li>○ Where security incidents occur, it is the requirement of Miro to notify The Organisation. The Organisation will undertake an assessment of the security incident and notify all impacted customers, clients and parties affected.</li> <li>● The Organisation will use the Zoom Video Conferencing tool to engage with customers, clients and other partners. This is an online platform provided by a third party (<a href="https://zoom.us/">https://zoom.us/</a>). In using Zoom, The Organisation (in this case That Agile Limited) takes the role of Customer and Data Controller, with Zoom as the Data Processor. <ul style="list-style-type: none"> <li>○ Zoom General Terms of Service <a href="https://zoom.us/terms">https://zoom.us/terms</a></li> <li>○ Zoom Privacy Policy <a href="https://zoom.us/privacy">https://zoom.us/privacy</a></li> <li>○ Zoom Data Processing Addendum <a href="https://zoom.us/docs/doc/Zoom_GLOBAL_DPA.pdf">https://zoom.us/docs/doc/Zoom_GLOBAL_DPA.pdf</a></li> </ul> </li> </ul> </li> </ul> |
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|  | <ul style="list-style-type: none"><li>○ Zoom Security <a href="https://zoom.us/docs/doc/Zoom-Security-White-Paper.pdf">https://zoom.us/docs/doc/Zoom-Security-White-Paper.pdf</a></li><li>○ Zoom Data Processing <a href="https://zoom.us/gdpr">https://zoom.us/gdpr</a></li><li>● Administration of documentation stored using the above platform will be restricted to one or more named staff of The Organisation using password protection.</li><li>● Access to documentation stored within the above platform shall be restricted to named customer or client staff participating in the delivery of products and services agreed through contracts for the duration of that contract.</li><li>● Documentation stored in the above platform shall be segregated between clients, customers and contractual engagements.</li><li>● Clients and customers accessing the above tool shall be required to sign up to use the above platform for the delivery of training, engagements and other contractual activities.</li><li>● Written consent from both the client and customer will be required before the above platform can be used.</li><li>● Where security incidents occur, it is the requirement of Zoom to notify The Organisation. The Organisation will undertake an assessment of the security incident and notify all impacted customers, clients and parties affected.</li></ul> |
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| <b>Business continuity</b> | <ul style="list-style-type: none"> <li>• Backups of electronic documentation are taken periodically in the interest of business continuity and to enable recovery against data corruption.</li> <li>• Backups are stored separately from the main computer device.</li> <li>• Backups are housed at the same site as the main business.</li> <li>• Electronic files stored on the computer will be periodically backed up to a remote location for resiliency using the Google Cloud/Drive service. <ul style="list-style-type: none"> <li>○ Access to remote backups will be controlled by a password and a two-factor authentication method.</li> </ul> </li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>Specific risks</b>      | <ul style="list-style-type: none"> <li>• As business will be conducted at client sites additional precautions will be taken <ul style="list-style-type: none"> <li>○ The collection of and generation of paper based documentation will be minimised wherever possible</li> <li>○ Computer devices and documentation shall be kept in sight by employees at all times.</li> <li>○ Computer devices will be locked/passworded when not in use</li> </ul> </li> <li>• As business will be conducted remotely additional precautions will be taken <ul style="list-style-type: none"> <li>○ Usage of third party online platforms such as those outlined previously shall be kept to a minimum and only made available and accessible for the duration of contracted engagements.</li> <li>○ All reasonable steps will be taken by The Organisation to ensure that customer and client staff do not engage in unauthorised recording and capture of engagements when using Video Conferencing and Collaboration tools, unless with the explicit permission of the client and customer.</li> <li>○ Usage of the above tools by customers and clients as part of contract engagements (Miro and Zoom) shall be monitored and controlled by The Organisation.</li> </ul> </li> <li>• Where information e.g. contact details are requested, these will be transferred over the phone, however it must be possible to verify the identity of the recipient.</li> </ul> |

| <b>Data recording and storage</b> |                                                                                                                                                                                                                     |
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| <b>Accuracy</b>                   | <ul style="list-style-type: none"> <li>• Where data is gathered from clients and individuals this will be confirmed either at the time of writing or in follow up engagements to ensure it is correct.</li> </ul>   |
| <b>Updating</b>                   | <ul style="list-style-type: none"> <li>• Where new data is generated following engagements with clients and individuals this will be updated on records.</li> </ul>                                                 |
| <b>Storage</b>                    | <ul style="list-style-type: none"> <li>• CONFIDENTIAL classified data will be stored as outlined in the security policy above.</li> </ul>                                                                           |
| <b>Retention periods</b>          | <ul style="list-style-type: none"> <li>• Data gathered will be retained for 5 years from the conclusion of an engagement with the client, customer or individual.</li> </ul>                                        |
| <b>Archiving</b>                  | <ul style="list-style-type: none"> <li>• Where the retention period expires, data held in paper form will be destroyed through shredding.</li> <li>• Data held electronically shall be securely deleted.</li> </ul> |



## Right of Access / Subject Access Request (SAR) Policy and Procedure

This policy explains how individuals can exercise their right of access under Article 15 UK GDPR and how we will handle requests.

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| <b>Responsibility</b>        | Thomas Hoyland is responsible for receiving, coordinating, and responding to SARs. If Thomas is unavailable, requests will still be processed within the statutory time limits by an appointed delegate.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Contact channels</b>      | Web form: <a href="https://www.thatagile.com/get-that-agile">https://www.thatagile.com/get-that-agile</a><br>Verbally: requests may be made by phone or in person. We will confirm verbal requests in writing.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>How to make a request</b> | A requestor may contact us through any of the channels above. We may ask you to clarify the scope of your request if needed to locate the information. We will not require a specific form, though we may provide one to help you explain what you want.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Verifying identity</b>    | <p>We may request proof of identity where reasonably necessary to confirm who you are, taking a proportionate approach. We will only ask for what is needed.</p> <p>Acceptable examples include one item from List A and one from List B:</p> <ul style="list-style-type: none"> <li>• List A (photo ID): passport, UK driving licence</li> <li>• List B (address ID): recent utility bill or bank statement dated within the last 3 months, council tax statement</li> </ul> <p>Where risk is low or we already know you, we may not need ID. Where risk is higher, we may ask for different or additional information. We will explain what we need and why.</p> <p>Any ID you provide will be stored securely, used only to verify identity, and deleted when no longer required. Unless needed for legal reasons, we aim to delete ID within 3 months of closing the request.</p> |
| <b>Timeframes</b>            | <p>We will respond without undue delay and within one month of receiving your request. If we reasonably need ID or clarification to locate the data, the one-month period starts once we have the information we need.</p> <p>For complex requests or where you make multiple requests, we may extend the response time by up to two further months. We will notify you within the first month if we need an extension and explain why.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>Charging</b>              | <p>We handle SARs free of charge.</p> <p>We may charge a reasonable fee based on administrative costs or refuse to act where a request is manifestly unfounded or excessive. Examples include repeated requests for the same data within a short period where nothing has changed. If a fee applies, we will tell you the amount and why before proceeding.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

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| <b>How we provide access</b>    | <p>We will provide a copy of your personal data and the information required by Article 15 UK GDPR.</p> <p>If you make your request by electronic means, we will provide the response in a commonly used electronic format unless you ask for another format.</p> <p>If you prefer paper, we can provide a paper copy. On request we can use recorded delivery.</p> <p>Where disclosure would adversely affect the rights and freedoms of others, we will redact or withhold third-party data where appropriate and explain our approach.</p> |
| <b>Refusals and limitations</b> | <p>We may refuse all or part of a request where an exemption applies or where the request is manifestly unfounded or excessive. If we refuse, we will explain the reasons and inform you about your right to complain.</p>                                                                                                                                                                                                                                                                                                                    |
| <b>Records</b>                  | <p>We keep a log of SARs received, our decisions, key dates, and the outcome. We keep this log only for as long as needed for audit and compliance purposes. Copies of identity documents will not be kept longer than necessary for verification as set out above.</p>                                                                                                                                                                                                                                                                       |
| <b>Complaints</b>               | <p>If you are unhappy with our response, please contact us using the details above. You also have the right to complain to the Information Commissioner's Office (ICO).</p>                                                                                                                                                                                                                                                                                                                                                                   |

| <b>Transparency</b>   |                                                                                                                                                                                                                                                                                                                                                       |
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| <b>Commitment</b>     | <ul style="list-style-type: none"> <li>• That Agile Limited is committed to communicating               <ul style="list-style-type: none"> <li>○ for what purpose data is being processed</li> <li>○ what types of disclosure are likely, and</li> <li>○ how an individual can exercise their rights in relation to their data</li> </ul> </li> </ul> |
| <b>Procedure</b>      | <ul style="list-style-type: none"> <li>• Before work begins, clients and customers will be informed what data will be collected and how this will be processed, what limitations exist and the procedure for further dissemination.</li> </ul>                                                                                                        |
| <b>Responsibility</b> | <ul style="list-style-type: none"> <li>• Thomas Hoyland</li> </ul>                                                                                                                                                                                                                                                                                    |

| <b>Lawful Basis</b>          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
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| <b>Underlying principles</b> | <ul style="list-style-type: none"> <li>• (a) Consent: the individual has given clear consent for you to process their personal data for a specific purpose.               <ul style="list-style-type: none"> <li>○ The data being processed under the legitimate interests of That Agile Limited in providing services to clients and customers in order to provide consultancy services and advice.</li> </ul> </li> <li>• (b) Contract: the processing is necessary for a contract you have with the individual, or because they have asked you to take specific steps before entering into a contract.               <ul style="list-style-type: none"> <li>○ The data being processed under the legitimate interests of That Agile Limited in providing services to clients and customers in order to provide consultancy services and advice.</li> </ul> </li> <li>• (f) Legitimate interests: the processing is necessary for your legitimate interests or the legitimate interests of a third party unless there is a good reason to protect the individual's personal data which overrides those legitimate interests. (This cannot apply if you are a public authority processing data to perform your official tasks.)               <ul style="list-style-type: none"> <li>○ The data being processed under the legitimate interests of That Agile Limited in providing services to clients and customers in order to provide consultancy services and advice.</li> </ul> </li> </ul> |
| <b>Opting out</b>            | <ul style="list-style-type: none"> <li>• Where individuals do not wish for their details to be recorded or image used, it is possible for them to opt-out at the point a statement of what data is being captured is provided.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>Withdrawing consent</b>   | <ul style="list-style-type: none"> <li>• Where individuals wish to explicitly request that their information is not used further, this can be requested. This must be done in writing. Consent cannot be withdrawn retrospectively. Any withdrawal of consent will become active from the time of notification onwards.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

| <b>Employee training &amp; Acceptance of responsibilities</b> |                                                                                                                                                                                            |
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| <b>Induction</b>                                              | <ul style="list-style-type: none"> <li>• All employees who have access to any kind of personal data will have their responsibilities outlined during their induction procedures</li> </ul> |
| <b>Continuing training</b>                                    | <ul style="list-style-type: none"> <li>• Employees will continue to remain informed of data protection regulations.</li> </ul>                                                             |
| <b>Procedure for staff signifying acceptance of policy</b>    | <ul style="list-style-type: none"> <li>• Acceptance of policy confirmed by signature of policy.</li> </ul>                                                                                 |

| Policy review  |                                                                                                         |
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| Responsibility | <ul style="list-style-type: none"><li>• Thomas Hoyland</li></ul>                                        |
| Procedure      | <ul style="list-style-type: none"><li>• Employees will be informed of the review and outcome.</li></ul> |
| Timing         | <ul style="list-style-type: none"><li>• Policy to be reviewed on 03-Oct-2027</li></ul>                  |

For more information, please visit the ICO website: <https://ico.org.uk/for-organisations/guide-to-the-general-data-protection-regulation-gdpr/>